Important Points of Bihar Building Bye-laws (2014 as amended in 2022) from RERA Perspective

CHAPTER -I

1. **Definitions-**

a) "**Building**" means any structure or erection or part of a structure or erection which is intended to be used for residential, commercial, industrial or any other purpose whether in actual use or not, and in particular. The building shall be classified as below :

1) **"Commercial Building"** refers to a building or part of a building, which is used for transaction of business, keeping of accounts and records or for similar purposes and includes Banks and Commercial Offices and Corporate offices. It shall include mercantile buildings like shops, stores, market display and sale of merchandise either in wholesale or retail, or offices, storage or services facilities incidental to the sale of merchandise and includes Cinema Halls, Petrol Pumps, Hotels, Restaurants, Clinics, Pathology Labs, Nursing Homes, Lodge-cum-guesthouses & Dharma Kantas, etc.;

2) **"Mercantile Buildings" -** These shall include any building or part of a building which is used as shops, stores, market, for display and sale of merchandise, either wholesale or retail, office, stores, and service facilities incidental to the sale of merchandise and located in the same building shall be included under this group.

3) **"Residential Building"** refers to a building in which sleeping accommodation is provided for normal residential purpose with or without cooking or dining or both facilities and includes one or two or multi-family dwelling dormitories, apartment houses, flats and hostels;

4) **"Building Height"** means the vertical distance measured, in the case of flat roofs, from the average level of the centre line of the adjoining street to the highest point of the building adjacent to the street wall

and in case of pitched roofs, up to the point where the external surface of the outer wall intersects the finished surface of the sloping roofs, and in the case of gables facing the road the midpoint between the eaves level and ridge. Architectural features serving no other function except that of decoration shall be excluded for the purpose of measuring heights of the building.

In case the contiguous ground level of the building is above the average level of the centre line of the adjoining street the height of the building shall be measured from such contiguous ground level or plinth, subject to limit of 0.90 m from the existing average level of the centre line of the adjoining street.

In case of basement, the height of the building shall be measured from the ceiling level of the basement, not exceeding 1.20 m from the existing average level of the centre line of the adjoining street.

b) **"Built up Area"** means the total covered areas on all floors of an immovable property;

c) **"Competent Authority"** shall mean the Authority Notified by the Urban Development and Housing Department.

d) **"Coverage"** means percentage of covered area on the ground floor which is not open to sky excluding the chajja /roof projections up to 0.75 metre width overhanging the open space to the total plot area;

e) "**Deviation**" means any construction made in departure from theapproved plan by way of alterations or additions, modifications inthe total floor area, coverage, floor area ratio (FAR), setbacks,height, parking space, provision of public utilities etc.;

f) **"Dwelling Unit"** means an independent housing unit with facilities for living, cooking and sanitary requirements;

g) "**EWS House”** means a house or dwelling unit intended for Economically Weaker Sections with maximum built up area of32sq.mtr or as decided by the State Government;

h) "**EWS Plot**" means a residential plot intended for Economically Weaker Sections having maximum plot area of 48 sq.mtr or as decided by the State Government;

i) "**Floor Area Ratio (FAR)**" means the quotient obtained by dividing the total covered area on all floors with the area of the plot;

j) "**Land Use**" means use of the land proposed in the Development Plan/Zonal Plan. Before coming into operation of the Development Plan /zonal plan, for the purpose of the application of these byelaws, the authority may designate land use zone with the approval of the Government;

k) "**LIG House**" means a house or dwelling unit intended for low income groups with a built up area of maximum 48 sq.mtr or as specified by the State Government;

l) "**LIG Plot**" means a residential plot intended for low income groups with a plot area of maximum 60 sq.mtr or as specified by the State Government;

m) "**Licensed Technical Person**" means Architect registered with the Council of Architecture or Civil Engineer/Structural Engineer/Town Planner/Supervisor licensed by the Authority;

n) "**Mezzanine Floor**" means an intermediate floor between any two floors, above ground level, accessible only from the lower floor;

o) "**Mixed Land Use**" means mixed use of the building/premises consisting of more than one compatible use of which the principal use shall not be less than 2/3rd of total built up area;

p) "**Multi - Storey or High Rise Building**" means a building whose height is 15 meters or more;

q) "**Occupancy or Use**" means the principal occupancy for which a building or a part of a building is used or intended to be used.

r) "**Parking Space**" means an area enclosed or unenclosed, covered or open, of sufficient size to park vehicles, together with a drive way connecting the

parking space with a street or any public area and permitting ingress and egress of the vehicles;

s) "**Permit**" means a permission or authorization in writing by the Authority to carry out the work regulated by these Bye laws.

t) "**Plinth**" means the portion of a structure between the surface of the surrounding ground and the surface floor, immediately above the ground.

u) "**Plinth Area**" means the built up area measured at the floor level of ground floor;

v) "**Registered Architect**" means an Architect registered with the Council of Architecture. They will get empanelled with the UDHD, Bihar and they shall be provided an online platform for getting empanelled at the state level.

w) "**Registered Builder/ Developer**" means a builder empanelled/registered with the UDHD, Bihar. The empanelment/ registration shall be applicable for all Planning Authorities/ Municipalities. Builder/ developer shall be provided an online platform for getting empanelled at the state level.

x) "**Registered Engineer"** means a engineer impaneled /registered with the UDHD, Bihar. The registration shall be provided for a period of 5 years in the process notified by the department or as per the online platform provided;

y) "**Setback line**" means a line usually parallel to the plot boundaries and laid down in each case by the Authority beyond which nothing can be constructed towards the plot boundaries.

z) "**Unsafe Building**" means buildings which are structurally and construction ally unsafe, or in-sanitary, or do not provide adequate means of egress, or which constitute fire hazard, or are otherwise dangerous to human life or property, or which in relation to existing use constitute a hazard to safety/health/public welfare by reason of inadequate maintenance, dilapidation or abandonment.

aa) "**Unauthorized Construction**" means the erection or re-erection, addition or alternation, which is not approved or sanctioned by the Authority.

[Words and expressions used in these bye laws, but not defined, shall have the same meaning as respectively assigned to them in the Act/Municipal Act/respective Rules and the National Building Code of India, 2005 amended from time to time.]

CHAPTER - II

ADMINISTRATION

2. Application.-

1) Any person who intends to develop land, erect, re-erect or make additions or alterations in any building, demolish any building or subdivide a plot for development shall apply to the Competent Authority. The Competent Authority may prescribe separate formats for different categories of buildings and group housing and land development.
2) **Application for development permit-**The application shall be made to the Competent Authority in Form-I. The following shall accompany the application for development permit in the case of development or re-development of land into plots, sub-divisions or land use zones. The documents as per shall be submitted in 4copies along with a soft copy in PDF and CAD format.
    i. **Key Plan-** This shall show the location of land proposed to be subdivided. This shall also show the North point and scale used.

ii. **Site Plan-** This shall be drawn on a scale of not less than 1:1000 for plots upto10 hectares and not less than 1:2000 for plots above 10 hectares and shall show-all points from (a) to (g), as mentioned in Bihar Building Bye Laws, 2014.

iii. **Sub-division layout Plan-** This shall be drawn on a scale of not less than1:500 for Plot up to 10 hectares and not less than 1:1000 for plots above 10hectares. This shall apply to plans for integrated development schemes also. This shall contain all points from (a) to (g), as mentioned in Bihar Building Bye Laws, 2014.

iv. **Ownership title-**Every application for development permit shall be accompanied by the following for verifying proof of ownership-

a) Attested copy of the original sale/lease deed, and

b) Attested copy of the revenue receipt (Malguzari receipt) Municipal Holding Tax receipt with khesra /holding No. or mutation records. In case of mutual partition deeds (un-registered) ''DAKHAL KABJA ''along with malguzari receipt is essential. Or, Affidavit or other documents acceptable to the authority.

3) **Application for building permit-** Application shall be made to the Competent Authority in Form-II. The documentsas mentioned in Bihar Building Bye Laws shall accompany the application for building permit in the case of permission for erection, re-erection of making material alternation. The documents shall be submitted in 4 copies along with a soft copy in PDF and CAD format.

4) **Certificates/Clearances:**

i. Attested copy of original sale/ lease deed, attested copy of the revenue receipt/ municipal holding tax receipt/ holding number and mutation records.

ii. In case the applicant is a trust, group of persons, partnership or a company, a registered agreement between the holder of the right, title

and interest and the applicant, valid under the Transfer of Properties Act, 1982 and Copies of the Agreement/ Article of Association/Memorandum/ Bye-laws. Draft Bihar Building Bye-Laws 25.

iii. No Objection Certificate from the Bihar State Housing Board / any Regional Development Authority, for the additional constructions, in case the house/ plot is delivered by the Board / Authority.

iv. Necessary environmental clearance from the appropriate authority wherever applicable. [refer to provisions laid down in the Environmental Impact Assessment Notification-2006 dated 14September 2006, amended by subsequent notifications by Ministry of Environment and Forest, Government of India. The Department of Environment and Forest, Government of Bihar may also prescribe norms for environment clearance.

v. For all buildings with a height of 15.0 meters and above or ground coverage more than 500 sq. m., NOC from the authority to be notified under Chapter VI of the Bihar Fire Service Act 2014, shall be submitted.

vi. NOC from Airport Authority of India shall be furnished wherever applicable.

vii. A certificate from the registered Engineer that the building plan and the design complies with the Earthquake Safety requirements as stipulated in the □□□□□ □□□□□ □□□□ □□□□□□□ □□□□□□□□□□, □□□□ □□□□□□□ □□□□□, □□□□□ □□□□□ □□□□□□ □□□□□□□-**10/**□□□□□□**/**□□□□□□□□□□□□□□□□□□□□□□**-13/2011-2253/**□□□□□□□□□□□□□ □□ □□□□□□ □□ □□ □□□□□□□ □□□□ □□□□ □□□ □□, □□□□□□ □□□□□ □□□□□ □□□ □□□□□□□□ □□□□□ □□ □□□□□□□□□□ □□□□ □□□□□ □□ □□□□□□ **(Design)** □□□ □□□□□□□ **(Construction)** □□ □□□□□ □□□ □□□□□□ □□□□-

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viii. For buildings more 15m in height, structural stability certificate in the prescribed Form-IV with Design Basis Report, signed by the engineer/structural engineer and the owner jointly shall be furnished.

ix. Supervision certificate in Form-V shall be furnished by the registered architect/ engineer/structural engineer/ supervisor/ town planner undertaking the supervision.

x. A check list in Form-VI shall be furnished by the empanelled/registered technical person.

6) **Permission.-**

a) No permission or notice shall be required for the works related to the following alterations and the like which do not otherwise violate any provisions regarding general building requirements, structural stability and fire and health safety requirements of the National Building Code-2005:

(i) Opening and closing of a window or door or ventilator;

(ii) Providing intercommunication doors;

(iii) Providing partitions;

(iv) Providing false ceiling;

(v) Gardening;

(vi) White washing;

(vii) Painting;

(viii) Re-tiling and reproofing;

(ix) Plastering and patch work;

(x) Re-flooring; and

(xi) Construction of sunshades on one's own land.

b) No permission shall be necessary for works carried out by Central Government and State Government Departments/ Bihar State Housing Board if the plans are signed by Government Architects. However the Government Architects shall ensure that the plans are prepared as per the provision of these bye laws and the master plan/ development plan wherever applicable. In case of such Government Projects lying in the area outside of any development plan/scheme, the Government Architects shall ensure to obtain NoCs required as per provision of this bye laws and Acts.

c) A separate guideline may be issued for sanctioning of project within the Gram Panchayat area but falling outside the jurisdiction of any Planning Authority.

d) All clarifications with respect to deficiency in the plan, documents will besought for from the applicant within 30 days.

e) Once the plan has been scrutinized and objections have been pointed out, the applicant shall modify the plan to comply with the objections raised and resubmit it. The Competent Authority shall scrutinize the re-submitted plan and if there will be further objections, the applicant should be given one more chance to comply with the objections raised within a period of 30 days after which if the final revised plan are not resubmitted the plan shall be rejected.

f) The Competent Authority shall communicate either approval in Form-VIII A or refusal in Form-IX within 60 days from date of receipt of application under ByeLaw-5 or within 30 days from the compliance of objection raised by the Competent Authority.

g) For buildings15m and above in height, conditional permission shall be accorded directing the builder to develop the onsite and offsite infrastructurelike connectivity of sewerage, drainage, water supply, road etc. as per thespecification of the local Authority.The builder/developer shall produce the required NOCs from the concernedAuthorities and submit it to the authority before the commencement of work.No separate permission shall be required.The Planning Authority/Authority shall establish a single window clearancesystem to process such NOCs and clearances related to it.

h) A residential building may be constructed by the owner of the land without prior approval of the plan by the Authority if the size of the plot is not more than 300 sq. meters and if all the conditions mentioned in Bihar Building Bye Laws.

7) **Duration of Permission.-**Every permission granted under these bye laws shall remain valid up to three years from the date such a permission is granted. The completion certificate shall have to be submitted within this period. However in case of failure to submit the completion certificate within the prescribed period the permission shall have to be revalidated before the expiry of the above period on payment of such fee as may be prescribed by the authority and such revalidation shall be valid for another two years. If the building/development works is not completed within the above mentioned five years period, the applicant shall make a fresh application for approval of building plan.

8) **Notice for commencement of work.-**The owner/applicant, upon commencement of his work under the building permit or for development land shall give notice in Form-X to the Authority that he is starting work and the Authority shall cause inspection of the work to be made within 14 days following the receipt of notice to verify that the building has been allocated and development work is being carried out in accordance with the sanctioned plans. If, however, the authority fails to make the

inspection within the specified period, it shall be presumed that the Authority has no objection to the construction.

9) **Information at the site of construction.-**(a) Whereas tests of any material are made to ensure conformity of the requirements of these bye laws, records of the tests data shall be kept available for inspection during the construction of building and for such period thereafter as required by the Authority.

(b) The persons to whom a permit is issued during construction shall keep pastedin a conspicuous place on the property in respect of which the permit was issued, a copy of approved drawings and specifications.

10) **Periodic report of Construction.-**In case of high rise buildings the builder/ owner/applicant shall submit a periodic progress report after each roof slab casting in Form-XI to the authority. The process of submission of such reports shall be made easy through an online process.

11) **Inspection.-**(a) As a matter of course all construction or work for which a permit is required shall be subject to inspection by the Authority at all reasonable hours with prior intimation.

(b) Inspection, where required, shall be made within seven days following the receipt of periodic report of construction in Form-XI. At the first inspection, the Authority shall determine that the building construction has been taken up in accordance with approved plans. A copy of the inspection report shall also be made available to the builder/ developer.

12) **Cancellation.-**If any time after permission to proceed with any building ordevelopment work has been given, the Authority is satisfied that such permission wasgranted in consequence of any material misrepresentation or fraudulent statementcontained in the application given or information furnished, the Authority may cancelsuch permission and any work done thereafter shall be deemed to have been donewithout permission.

13) **Completion of Construction.-**(1) The Authority shall permit an empanelled Architect/ Engineer to certify completion of building for

residential buildings designed by self or otherwise on a plot size referred to in bye law 8(6). The responsibility of compliance with respect to provisions of these bye laws shall rest with registeredarchitect/engineer/owner.

(2) For all buildings including mentioned in (1) above, the owner/concerned empanelled architect/engineer/structural engineer will submit the notice of completion in Form-XII to the Authority that the building has been completed in all respects as per the approved plan and provision of the Byelaws. The said notice shall be accompanied by the following documents:

a. Three copies of completed building plans.
b. A fee of Rs.1000/-.
c. Record of Rights relating to ownership.
d. Copy of approved plan and approval letter.
e. Certificate of establishment of fire safety appliances by the nominated authority wherever applicable.
f. Evidence to the effect of all public utility services, and in particular, sewerage, drainage, water supply, and electricity have been linked to the main public utility system.

(3) The deviations shall also be brought to the notice of the Authority (with relevant documents).

(4) The team of officials shall visit the site within 15 days and occupancy certificate shall be given. The team will verify the following facts:

a. Number of floors
b. Building height
c. External Setbacks
d. Building Line
e. Parking space provision
f. Abutting road width
g. FAR
h. Tree Cover
i. Water harvesting structures

j. Land if required to be surrendered.

The team shall record the deviations made from the approved plan.

(5) Implementation of Life Safety provisions as mentioned in National Building Code 2005(Group-1 Part-IV Fire and Life Safety-4) shall be compliedwherever applicable.

14) **Certificate for occupancy-**(1) The Authority shall issue a certificate for occupancy for all category of buildings, for part of a building during its construction or whole of the building after construction in Form-XIII or refuse occupancy, as the case may be, within 30 days from the date of application. The refusal of occupancy certificate shall be a speaking order clearly mentioning the reason for refusal of occupancy certificate. If the Occupancy Certificate is not issued within time limit mentioned above, the applicant shall submit a notice with an affidavit that the construction is strictly as per the approved plans and no dues in development charges or any other form of payment to be made to the Authority are pending and all the conditions for issuing of occupancy permission are complied with. In case of non compliance of such notice within 15 days, it will be deemed to have been granted. In case of any false statement the applicant shall be liable for punishment under the provisions of these Bye Laws and other suitable legal action.

(2) **Temporary occupancy -** Upon the request of the licensed technical personnel, the Authority may issue a temporary certificate of occupancy for a building or a part thereof before the entire work covered by the building permit shall have been completed, provided such portion or portions may be occupied safely prior to full completion of building without endangering life or public welfare.

(3) **Development Certificate-** No land or plot thereafter developed shall be given possession in whole or in part until the issue of a development certificate by the authority after affirming that such development is in accordance with the sanctioned plan and prescribed specification as per

Performa given in Form-XIII. The Development Certificate shall be issued within 30 days of receipt of the application. The refusal of development certificate shall be a speaking order clearly mentioning the reason for refusal.

(4) Before issuing occupancy certificate, the competent authority shall verify that the building complies with the provisions of life safety as mentioned in National Building Code 2005(Group-1 Part-IV Fire and Life Safety-4) wherever applicable.

(5) The department/line agencies dealing with electric power, water supply, drainage and sewerage shall not give connections to building unless such occupancy/ development certificate is produced. Any violation by the department/Authority/Agencies in this regard shall be treated as an offence under the Bihar Municipal Act 2007 and the Act. However, a limit connection of water supply and electricity for the purposes of construction can be given after the approval of the Building Plan.

(6) The occupancy/development certificate shall also state the use/type of occupancy of the building. However, the applicant may apply for change of use/occupancy permitted within the purview of the Development Plan/Zonal Plan/ Zoning Regulations, where so required.

(7) In case of multi storied building (residential buildings greater than 15m in height) and other special building like educational, assembly, institutional, industrial, storage and hazardous and mixed occupancies with ground covered area more than 500 sq.mtr., periodic inspection shall be made by the authority nominated by the State Government under Chapter VI of the Bihar Fire Service Act 2014, once in five years to ensure the fire safety provisions of the building are in proper order and the building complies with the provision of fire and life safety requirements ('Fire and Life Safety', Part-4 of NBC).In case the building fails to comply with requirement of fire safety the building shall be declared unsafe.

(8) All occupied buildings and buildings covered under sub-bye law (4) above shall also be subject to periodic physical inspection by a team of multidisciplinary professionals of the Authority. This work may be out sourced by the Authority as may be deemed necessary. The team shall report compliance of bye-laws, natural lighting, and ventilation, lift besides structural and electrical safety. If any short comings/deficiencies or violations are noticed during inspection, the occupants shall ensure the compliance of the same within a specified time frame of six months. If not complied with, the building shall be declared unsafe. The period of inspection shall be once in five years.

(9) An appeal against the decision of the Authority shall lie with the respective Tribunal under the Act or the Municipal Act.

15) Construction not according to plan-(1) If the Authority finds at any stage that the construction is not being carried on according to the sanctioned plan or is in violation of any of the provisions of these bye laws, it shall notify the owner giving details of deviation and no further construction shall be allowed until necessary corrections in the plan are made and the corrected plan is approved. In case the deviation is within condonable limits the construction shall not be stopped.

(2) If the owner fails to comply with the requirements at any stage of construction, the Authority may cancel the building permission issued and shall cause notice of such cancellation to be pasted upon the said construction. If the owner is not traceable at the address given in the notice, pasting of such notice on the premises shall be considered as sufficient notification of cancellation to the owner thereof. No further work shall be undertaken or permitted upon such construction until a valid building permission is issued thereafter.

(3) The notification under sub-bye law (2) shall also be published in as public notice and also on the Website.

(4) The above-mentioned procedure shall also be followed in case of deviation ofthe layout.

(5) An appeal against an order under sub-bye law (2) above shall lie with therespective tribunals under the Act and Municipal Act.

CHAPTER - IX

COMPOUNDING, PENALTIES AND COMPLIANCE

3. **Restriction on Compounding-** (1) Any deviation pertaining to unauthorized development shall not be compounded;
   A. Where construction has been undertaken on Government land or landbelonging to local body or land not owned by the person undertaking suchdevelopment;
   B. Where FAR or height has been exceeded or front setback has been reducedfrom the prescribed norms under these bye laws.
   C. Where development has been undertaken un-authorizedly within theprohibited limits of any ancient or archaeological monuments.
   D. Where such developments interfere with the natural drainage of the locality;
   E. Where development has been undertaken un-authorisedly over the areaearmarked /approved for parking; and,
   F. Where road or drain whether public or private, whether constructed ornatural, has been encroached.
   G. Where number of floors have been increased from permissiblelimit/sanctioned map.

(2) Subject to the provisions contained in sub bye law (1), the Authority shallhave the power to determine such other circumstances under

whichcompounding may be prohibited.

(3) The Authority may, either before or after the institution of the proceedingsunder the provisions of the Act compound any offence:

A. Where development has been undertaken without permission, butwithin the framework of use restrictions and the provisions of these byelaws applicable to the concerned plot;

B. Where development has been undertaken in deviation of the approvedplan, but within the framework of the use restriction and the provisions,norms, and stipulations of these bye laws; and

C. The Authority may however compound deviations beyond thepermissible norms of these bye laws up to 10% in respect of side andrear setbacks, 5% in respect to FAR and 5% in respect to height with amaximum limit of 0.90 m.

(4) **Compounding amount-**At least 50% of the compounding amount shall be utilizedfor development of public utility services and protection of heritage sites andstructures.

(5) **Temporary retention-**The Authority may allow retention of any unauthorizedstructure for temporary period on deposit of retention fee. The type of structure to beretained, the period of retention and the fees to be deposited shall be decided by theAuthority from time to time.

(6) **Penal Action against Builders/ Technical Personnel.-**(1) Notwithstanding anythingcontained in these bye laws, the Authority reserves the right to debar/ black list andtake legal action against the builder/ technical person who has deviated from theprofessional conduct or has made any fraudulent statement or hasmisrepresented/suppressed any material facts in his application/ plan or is involved inconstruction of the building deviating from the approved plan/norms of these bye laws.(2) Before taking any action under clause (1) specified above, the Authority shallissue a notice specifying the reasons thereof asking for a show-cause within 15days as to why such builder/technical person shall not be debarred/black

listed.After receipt of the show cause, if any, the same shall be placed before theAuthority for a decision on debarring/black listing the technical person/builder.The decision of the Authority in this regard shall be published in the NoticeBoard of the Authority and the Govt. website.

(3) An appeal against an order under (2) above shall lie under Section-79 of the Act and Section- 329 of the Bihar Municipal Act 2007.

(7) **System for monitoring-** A system for monitoring shall be put in place by allauthorities to ensure that the Bye laws are followed and prompt action shall be taken incase of violation of these bye laws.